

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-12

20240930-DK-BUTTERFLY-1, INC., F/K/A BED BATH & BEYOND, INC. v.

MSC MEDITERRANEAN SHIPPING COMPANY SA

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant 20240930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“BBBY”) and Respondent MSC Mediterranean Shipping Company SA (“MSC”) (BBBY, collectively with MSC, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report:

Following the Parties’ previous Joint Status Report dated July 1, 2024, they have resolved discovery disputes, resolved technical challenges that hindered the review and exchange of discovery material, exchanged millions of pages of documents, begun and continue to review the voluminous documents that were exchanged, have engaged in settlement discussions at the principal level, and are preparing for depositions of witnesses. As advised in the Parties’ Joint Motions to Extend Deadlines dated July 22, 2024; September 24, 2024; and December 9, 2024, the Parties have continued proactive and diligent efforts to exchange and review documents, including productions consisting of several million pages of material, including correspondence, documents, and substantial productions of data. These efforts to progress discovery, including preparation for depositions and the continued review of documents, continued through the holidays and are still ongoing at this time.

In accordance with the Presiding Officer's Third Amended Scheduling Order dated December 11, 2024, the Parties now provide this Joint Status Report.

Settlement Negotiations

Since the entry of the Third Amended Scheduling Order, the Parties' Principals have engaged in settlement efforts, including two virtual settlement meetings, and have proposed dates and times for a third virtual settlement meeting with counsel in attendance. This meeting has been scheduled for January 21, 2025, noting that the senior representatives who will be in attendance have faced significant scheduling constraints that are complicated further by their respective geographic locations.

Depositions

The Parties have exchanged the names of witnesses who will be deposed in lieu of formal deposition notices, and depositions will be scheduled promptly if the matter is not resolved through the ongoing settlement negotiations. The Parties have agreed that this will permit the Parties to explore settlement more fully and complete depositions, if necessary, should settlement efforts fail.

As the Parties have advised in each of the Joint Motions to Extend Deadlines and the prior Joint Status Report, the exchange of discovery and corresponding efforts to review the materials produced undertaken by each Party have been nothing short of monumental. The Parties continue to strive to comply with existing deadlines and have also renewed efforts at the principal level to explore settlement through virtual meetings and are considering mediation, if direct negotiations between the Parties principals are not successful. These efforts are ongoing simultaneously with the continued review of massive volumes of documents and preparation for depositions as required under the Third Amended Scheduling Order. To enable the Parties to accomplish this work, the

Parties are filing an additional Joint Motion to Extend Deadlines as further relief is necessary to provide the Parties with a meaningful opportunity to prepare for and complete depositions and to continue exploring settlement.

[SIGNATURE PAGE FOLLOWS]

Dated: January 16, 2025

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